

Proponent Details

Project Owner Info

Title	Ms
First Name	Mishelle
Last name	Yam
Role/Position	Senior Project Manager
Phone	0474152211
Email	Mishelle.Yam@nextdc.com
Address	, , , AUS

Company Info

Are you applying as a company/business?

Yes

Company Name	NEXTDC LIMITED
ABN	35143582521

Primary Contact Info

Are you the primary contact?

Yes

Title

Mr

Phone

0282339999

First Name

Patrick

Email

pjones@urbis.com.au

Last Name

jones

Role/Position

Address

AUS

Development Details

Engagement with the Department

Have you engaged with the department in relation to this project?

No

Project Info

Project Name	NEXTDC S4 Data Centre Phase 2, Horsley Park
Industry	Water and Telecommunications
Development Type	Data Storage
Estimated Development Cost (excl GST)	AUD3,500,000,000.00
Indicative Operation Jobs	217
Indicative Construction Jobs	1,100
Number of Occupants	0
Number of Dwellings	0
Gross Floor Area (GFA) sqm	37,425

Description of the Development/Infrastructure

Construction and operation of a data centre comprising of two data centre buildings with a maximum height of 38.7m and 32.4m respectively, and an operational capacity of 134.4MW, including internal roads, earthworks, car parking, landscaping and ancillary works.

Concept Development

Are you intending to submit a concept or staged application?

No

Site Details

Site Information

Site Name	6 Johnston Crescent, Horsley Park
Site Address (Street number and name)	6 Johnston Crescent, Horsley Park
Site Co-ordinates - Latitude	-33.831375
Site Co-ordinates - Longitude	150.826

Local Government Area

Local Government	District Name	Region Name	Primary Region
Fairfield City	Western City District	Sydney	

Lot and DP

Lot and DP
Lot 306 in DP1275011

Site Area

What is the total site area for your development?
Site Area sqm
213,300

Statutory Context

Note: Please confirm the below selection by referring to the applicable section of either the [Planning Systems SEPP 2021](#) or the [Transport and Infrastructure SEPP 2021](#) or the applicable Ministerial planning order.

Which State Environmental Planning Policy (SEPP) does your application relate to?

Schedule 1: SSD - General (Planning Systems SEPP 2021)

Section under selected Schedule

Section 25 - Data storage

Permissibly of Proposal

Permissible with consent

Describe the permissibility of the proposal under relevant environmental planning instruments

The site is zoned IN1. The proposed development is for the purpose of a data centre, a type of "high technology industry". A "high technology industry" is a type of "light industry" which sits under the group term of "industry". Industries (other than offensive or hazardous industries) are permitted with consent in the IN1 zone.

The proposal also includes ancillary office space, which is subordinate to the principal use. Accordingly, the office and innovation components are permitted.

Biodiversity Development Assessment Report Waiver Request

Would you like to request that the requirement for a biodiversity development assessment report be waived?
Yes

Attachments

File Name	Appendix H - BDAR Waiver Request
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Land Use Zones

What land use zone/s is the development in?
Land use zones (select all that apply)
IN1 General
Industrial

Statutory Context 2

Legislation and EPIs

List any relevant legislation and environmental planning instruments that apply to the project.

- ☐ Commonwealth Environment Protection and Biodiversity Conservation Act 1999 (EPBC Act)
- ☐ NSW Biodiversity Act 2016 (BC Act)
- ☐ Protection of the Environment Operations Act 1997 (POEO Act)
- ☐ Environmental Planning and Assessment Act 1979 (EP&A Act)
- ☐ Environmental Planning Assessment Regulation 2021 (EPA Regulation)
- ☐ State Environmental Planning Policy (Biodiversity and Conservation) 2021 (B&C SEPP)
- ☐ State Environmental Planning Policy (Planning Systems) 2021 (Planning Systems SEPP)
- ☐ State Environmental Planning Policy (Resilience and Hazards) 2021 (R&H SEPP)
- ☐ State Environmental Planning Policy (Transport and Infrastructure) 2021 (T&I SEPP)

- State Environmental Planning Policy (Sustainable Buildings) 2022 (Sustainable Buildings SEPP)
- State Environmental Planning Policy (Industry and Employment) 2021 (I&E SEPP)
- Fairfield Local Environmental Plan 2013 (FLEP 2013)

List any relevant planning agreements or existing approvals that apply to the project (e.g. concept plan approvals, staged DA consents).

Would the project vary any development standard?

No

Designated development

Would the project be designated development (but for Section 4.10(2) of the Environmental Planning and Assessment Act 1979) under [Schedule 3 of the Environmental Planning and Assessment Regulation 2021](#) or any other environmental planning instrument?

Yes

Describe any designated development provisions and how they would relate to the project (but for Section 4.10(2) of the Environmental Planning and Assessment Act 1979).

For the purpose a scheduled activity, ‘chemical storage’ includes petroleum products storage, which is defined as ‘the storage or packaging of petroleum products in containers, bulk storage facilities or stockpiles.

The project includes approximately 2,170kL tonnes of diesel to be stored on-site. This is above the 2,000-tonne limit and so the diesel storage will be classified as a scheduled activity for which a license is required

Sustainable Buildings SEPP

Exemption from Sustainable Buildings SEPP

Is the development exempt from the [State Environmental Planning Policy \(Sustainable Buildings\) 2022 Chapter3](#), relating to non-residential buildings?

No

Is the development a prescribed state significant development in the Sustainable Buildings SEPP?

- Cultural, recreation or tourist facility
- Hospital, medical centre or health research facility
- Educational establishment

No

Is the development a prescribed large commercial development in the Sustainable Buildings SEPP?

- Hotel or motel with 100 rooms or greater
- Serviced apartments with 100 apartments or greater
- Office premises with 1000 sqm net lettable area (NLA) or greater

No

Approvals - Part1

Would the development otherwise, but for [Section 4.41](#) of the Environmental Planning and Assessment Act 1979, require any of the following:

A permit under [Section 201](#), [205](#) or [219](#) of the [Fisheries Management Act 1994](#)?

No

An approval under [Part 4](#), or an excavation permit under [Section 139](#), of the [Heritage Act 1977](#)?

No

An Aboriginal heritage impact permit under [Section 90](#) of the [National Parks and Wildlife Act 1974](#)?

No

A bush fire safety authority under [Section 100B](#) of the [Rural Fires Act 1997](#)?

No

A water use approval under [Section 89](#), a water management work approval under [Section 90](#) or an activity approval under [Section 91](#) of the [Water Management Act 2000](#)?

No

Approvals - Part2

Do you require any of the following approvals from [Section 4.42](#) of the Environmental Planning and Assessment Act 1979, in order to carry out the development:

An aquaculture permit under [Section 144](#) of the [Fisheries Management Act 1994](#)?

No

An approval under [Section 15](#) of the [Mine Subsidence Compensation Act 1961](#)?

No

A mining lease under the [Mining Act 1992](#)?

No

A petroleum production lease under the [Petroleum \(Onshore\) Act 1991](#)?

No

An environment protection licence under [Chapter 3](#) of the [Protection of the Environment Operations Act 1997](#) (for any of the purposes referred to in [Section 43](#) of that Act)?^{*}

Yes

A consent under [Section 138](#) of the [Roads Act 1993](#)?^{*}

No

A licence under the [Pipelines Act 1967](#)?^{*}

No

Attachments

File Name	Appendix H - BDAR Waiver Request
File Name	Scoping Report - S4 Phase 2_Final
File Name	Appendix A - Concept Architectural Design Report
File Name	Appendix C - Infrastructure Servicing Strategy
File Name	Appendix E - Water Technical Memorandum
File Name	Appendix G - ACHAR Methodology and Background Information
File Name	Appendix B - Preliminary Viewpoint Locations
File Name	Appendix F - Near Neighbour Letter
File Name	Appendix D - Recycled Water Memo
File Name	Site Context Map - NEXTDC S4 (Phase 2)